**IN THE HIGH COURT FOR THE STATE OF TELANGANA**
**AT HYDERABAD**
**(Special Original Jurisdiction)**

THURSDAY, THE THIRTEENTH DAY OF AUGUST
TWO THOUSAND AND TWENTY SIX

**PRESENT**

**THE HONOURABLE SRI JUSTICE N.V.SHRAVAN KUMAR**

**WRIT PETITION No.22138 OF 2026**

**Between:**

1. Sri Singarikonda Srinivasulu, S/o Sri Singirikonda Narasimha, Aged about 57 years, Occ: Business, R/o H.no. 11-13-1324, Road no. 4A, Margadarshi Colony, Ashta Lakshmi Temple, Kothapet area, Saroornagar, Hyderabad District - 500035
2. Sri Peddolla Sreenivas, S/o Sri Peddolla Narsimulu, Aged about 49 years, Occ: Business, R/o H.no. 3-39, Ramannaguda, VTC, Nyalata, Chevella, Vikarabad District – 501503.
3. Sri Sambireddy Krishna Reddy, S/o Sri Narayan Reddy Sambireddy, aged about 76 years, Occ: Business, R/o Plot No. J 19-20, Lorven Next Flat No.405, Panchavathi Colony, Manikonda, Puppalaguda, Ranga Reddy District – 500089.

**...PETITIONERS**

**AND**

1. The State of Telangana, Rep by its Principal Secretary, Housing Department, Secretariat, Hyderabad.
2. The Telangana Housing Board, Gruhakalpa Complex MJ Road Nampally Hyderabad – 500001, Rep by its Vice-Chairman and Housing Commissioner.
3. The Executive Engineer, (Housing) North Division, Telangana Housing Board, S.R.Nagar, Hyderabad.

**...RESPONDENTS**

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to issue an appropriate writ, order or direction, more particularly one in the nature of Writ of Mandamus, declaring the proceedings bearing Lr.No.Auction/GB/Land/Dog Park/EE(N)/2026 /TGHB-DB/LAND/59/2025-EE-North Division-Hyd, dated 19.06.2026,

issued by the Telangana Housing Board cancelling the confirmed auction/allotment in respect of the commercial plot situated adjacent to Dog Park, Phase-IV, Housing Board Colony, Gachibowli, Serilingampally Mandal, and directing forfeiture of 25% + 1% of the bid amount deposited by the Petitioners, as illegal, arbitrary, irrational, self-contradictory, violative of principles of natural justice, contrary to the Respondents' own record, and violative of Articles 14, 19(1)(g) and 300-A of the Constitution of India, and consequently set aside the same, direct the respondents to consider representation dated 06.07.2026 and restore the auction confirmation in favour of the Petitioners, permit the Petitioners to remit the balance sale consideration after the Respondents furnish the complete revenue sketch, authenticated boundaries, survey particulars and clear vacant possession, and direct the Respondents to execute and register the sale deed in favour of the Petitioners upon receipt of the balance sale consideration and to indemnify the same in lieu of pending W.P no.17339 of 2025.

**I.A. NO: 1 OF 2026**

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to suspend the operation of the proceedings dated 19.06.2026 and direct the Respondents not to re-auction alienate encumber register hand over possession or create third party rights in respect of the commercial plot situated adjacent to Dog Park Phase-IV Housing Board Colony Gachibowli Serilingampally Mandal and further direct the Respondents to keep the Petitioners' deposited amount intact and not appropriate/forfeit the same finally pending disposal of the Writ Petition.

**Counsel for the Petitioners: SRI SUNIL B GANU, SENIOR COUNSEL FOR SRI MANJARI S GANU**
**Counsel for the Respondent No.1: GP FOR HOUSING**
**Counsel for the Respondent Nos.2 & 3: SRI C.BUCHI REDDY, SC FOR TSHB**

**The Court made the following: ORDER**

**IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD**

**THE HONOURABLE SRI JUSTICE N.V.SHRAVAN KUMAR**

**WRIT PETITION No.22138 of 2026**

**DATE OF ORDER:13.08.2026**

**Between:**

1. Sri Singirikonda Srinivasulu
2. Sri peddolla Sreenivas
3. Sri Sambireddy Krishna Reddy

...Petitioners

AND

The State of Telangana, Represented by its Principal Secretary, Housing Department, Secretariat, Hyderabad & two others

...Respondents

**ORDER:**

This writ petition is filed aggrieved by the proceedings bearing Letter No.Auction/GB/Land/Dog Park/EE(N)/2026/TGHB-DB/LAND/59/2025-EE-North Division-Hyd, dated 19.06.2026 issued by the Telangana Housing Board cancelling the confirmed auction/allotment in respect of commercial plot situated adjacent to Dog Park, Phase-IV, Housing Board Colony, Gachibowli, Serilingampally Mandal and directing forfeiture of 25% + 1% of the bid amount deposited by the petitioners as being illegal, arbitrary, irrational, self-contradictory, violative of principles of natural justice, contrary to the Respondent's own record, and violative of Articles 14, 19 (1) (g) and 300-A of the Constitution of India. The petitioners are also seeking a direction to set-aside the same, and direct the respondents to consider the representation dated 06.07.2026 and restore the auction confirmation in favour of the petitioners, and

permit the petitioners to remit the balance sale consideration after the respondents furnish the complete revenue sketch, authenticated boundaries, survey particulars and clear vacant possession, and further direct the respondents to execute and register the sale deed in favour of petitioners upon receipt of the balance sale consideration and to indemnify the same in lieu of pending W.P.No 17339 of 2025.

2. Sri Sunil B Ganu, learned senior counsel representing Sri Manjari S Ganu, learned counsel for the petitioners on record would submit that in terms of the auction notice dated 31.05.2025, the petitioners have participated in the auction for plot No.12 which is described as land adjacent to Dog Park, Phase-VI, Housing Board Colony, Gachibowli village, Serilingampally Mandal, Ranga Reddy District, for an extent of 1487 square yards classified as commercial land. It is further submitted that one Nikhil Reddy, on behalf of petitioners, addressed a letter dated 03.09.2025 to respondent No.3 and had informed that he had made payment of 25% towards plot purchase and requested to acknowledge receipt of said payment and issue the necessary documentation to enable him to proceed with the balance payment and initiate the registration process, and accordingly, respondent No.3 has acknowledged the same and confirmed the same in favour of the petitioners. Thereafter, respondent No.2 had issued the impugned proceedings dated 19.06.2026, stating that petitioners stood as highest/successful bidder and they have deposited 25% of bid amount and failed to pay

balance 75% of the bid amount within the time and request of the petitioners for further time to pay balance amount was rejected and auction was cancelled, thereby 25% + 1% deposited by the petitioners was forfeited to the board. Learned senior counsel further submits that pursuant to the impugned order dated 19.06.2026 the petitioners could not pay the balance amount and that now they are ready to pay the balance amount and a representation was also made to that effect on 06.07.2026 requesting to re-consider the proceedings dated 19.06.2026 cancelling the auction/allotment in respect of commercial plot.

3. Learned senior counsel further submits that in the impugned proceedings apart from noting that there was delay in making the balance 75% amount to be paid to the respondents, however, the respondents reserved the right to put the subject property to fresh auction subject to result/further orders of this Court in W.P.No.17339 of 2025. Learned senior counsel would submit that on a perusal of the orders passed in W.P.No.17339 of 2025, it is noted that the subject matter plots in the said writ petition are falling in Sy.Nos.103,105,106 and 109 situated at Gachibowli village, Serilingampally Mandal, Rangareddy District.

4. Learned standing counsel appearing for respondents fairly submits that in the auction notice, dated 31.05.2025, no survey number had been mentioned and further submits that proposed auction concerned in this writ petition is situated in Sy.No.108 and a

reference was also made to the communication of the Deputy Collector & Thahsildar, Serilingampally to the respondent No.3 dated 25.08.2025 wherein it is clarified that the subject plot which was auctioned to an extent of 1137 square yards is falling in Sy.No.108 of Gachibowli village, Serilingampally mandal, Rangareddy District covered with pre-cast compound wall, which is not disputed by the learned senior counsel.

5. Learned senior counsel for the petitioners further submits that the petitioners have participated in auction for an extent of 1487 square yards but on the ground position it was observed that an extent of 1137.95/1138 square yards is available for occupation and that the petitioners are now ready to accept the said offer for an extent of 1137.95/1138 square yards.

6. Learned standing counsel appearing for respondent Nos.2 and 3 herein would submit that in W.P.No.17339 of 2025, The Executive Engineer (Housing), Telangana Housing Board Office, Gruhakalpa, M.J.Road, Nampally, Hyderabad appearing for respondent No.4 submitted that the subject land claimed by the petitioner is forming part of Sy.No.103, whereas the auction notice had been issued for the land in Sy.No.104 and both the survey numbers are totally different and distinct and recording the submissions made on either side therein, the respondents therein were permitted to proceed with conducting of auction vide proceedings bearing No.114/Auction

Advertisement/EEN/2025 subject to outcome of the result of the said writ petition.

7. On a perusal of the impugned proceedings dated 19.06.2026, it is observed that the said proceedings were issued on two grounds, namely;

(i) That though the petitioners were granted sufficient opportunities and final opportunity to pay the balance amount on or before 30.04.2026, on account of failure of the petitioners to pay the balance amount which constituted breach of terms and conditions of auction particularly clause-8, the auction in respect of the subject plot was cancelled and initial deposit/earnest money of 25% + 1% of the applicable bid amount was forfeited to the respondent No.4;

(ii) That the respondent No.4 Housing Board reserved its right to put the subject property to fresh auction subject to result of further orders of this Court in W.P.No.17339 of 2025.

8. On a further perusal of the impugned proceedings dated 19.06.2026 and recording the submissions of the learned standing counsel appearing for respondent Nos.2 and 3 to the effect that the subject plot pertaining to the auction notification falls in Sy.No.108 and since in the impugned order a reference was taken to W.P.No.17339 of 2025 wherein the subject matter in the said writ petition would form part of Sy.Nos.103 and 104, as such the auction proceedings being conducted for the subject plot of the petitioners

pursuant to the auction notice dated 31.05.2025 as recorded is falling in Sy.No.108 is different to the survey numbers covered in the orders passed in W.P.No.17335 of 2025, as such is not applicable to the auction conducted for the subject plot of the petitioner vide auction notice dated 31.05.2025.

9. Further, during the course of arguments, learned senior counsel appearing for the petitioners on the instructions of the learned counsel for the petitioners on instructions would submit that the petitioners are now ready to pay the balance sale amount within a period of one week from today and prayed this Court that liberty may be granted to the petitioners to pay the balance sale consideration amount to conclude the auction proceedings.

10. Heard learned senior counsel for the petitioners and learned Standing Pleader appearing for respondents and perused the material available on the record.

11. Having considered the above facts and circumstances, recording the submissions made by the learned counsel appearing on either side, this Court deems it appropriate to dispose of the writ petition setting aside the impugned proceedings dated 19.06.2026 passed by 2nd respondent in so far as the petitioners herein is concerned in this writ petition and since the petitioners are ready to make the balance payment subject to the acceptance of the respondent authorities, the same shall be paid on or before 22.08.2026 as submitted by the

learned senior counsel. It is made clear that if the petitioners pay the balance amount on or before 22.08.2026, the respondent authorities upon confirmation are directed to consider the same, execute and register the sale deed in favour of the petitioners upon receipt of the balance sale consideration in accordance to the provisions of the Registration Act, 1908 and the Indian Stamps Act, 1899 and pass appropriate orders within a period of (03) weeks thereafter. It is made clear that if the payment time line stipulated in this order is not complied by the petitioners, it is left open to the respondent authorities to take appropriate action strictly in accordance with law.

12. With the above directions, this writ petition is disposed of. There shall be no order as to costs.

As a sequel thereto, miscellaneous applications if any pending in this petition, shall stand closed.

**SD/- U.SUDHA**
**ASSISTANT REGISTRAR**

**//TRUE COPY//**

**SECTION OFFICER**

**To**

1. The Principal Secretary Housing Department Secretariat Hyderabad, State of Telangana.
2. The Vice-Chairman and Housing Commissioner, Telangana Housing Board, Gruhakalpa Complex MJ Road Nampally Hyderabad - 500001
3. The Executive Engineer, (Housing) North Division Telangana Housing Board SR Nagar Hyderabad
4. One CC to SRI MANJARI S GANU, Advocate [OPUC]
5. Two CCs to GP FOR HOUSING, High Court for the State of Telangana, at Hyderabad. [OUT]
6. One CC to SRI C.BUCHI REDDY, SC FOR TSHB [OPUC]
7. Two CD Copies

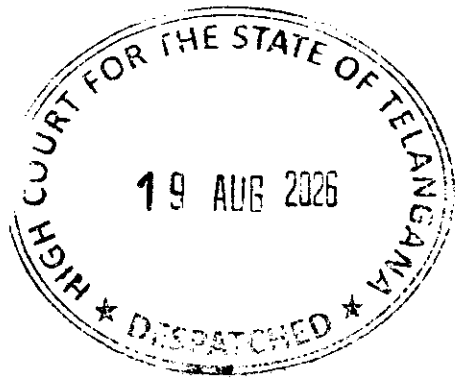
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CC TODAY

HIGH COURT

DATED: 13/08/2026

ORDER
WP.No.22138 OF 2026




DISPOSING OF THE WRIT PETITION

WITHOUT COSTS.